

Response to Verdins Submission

R v Verdins [2007] VSCA 102

[5] The sentencing considerations identified in *R v Tsiaras*¹ are not – and were not intended to be – applicable only to cases of “serious psychiatric illness.” One or more of those considerations may be applicable in any case where the offender is shown to have been suffering at the time of the offence (and/or to be suffering at the time of sentencing) from a mental disorder or abnormality or an impairment of mental function, whether or not the condition in question would properly be described as a (serious) mental illness.

[8] The sentencing court should not have to concern itself with how a particular condition is to be classified. Difficulties of definition and classification in this field are notorious. There may be differences of expert opinion and diagnosis in relation to the offender. It may be that no specific condition can be identified. What matters is what the evidence shows about the nature, extent and effect of the mental impairment experienced by the offender at the relevant time.

[32] Impaired mental functioning, whether temporary or permanent is relevant to sentencing in at least the following six ways:

1. The condition may reduce the moral culpability of the offending conduct, as distinct from the offender’s legal responsibility. Where that is so, the condition affects the punishment that is just in all the circumstances; and denunciation is less likely to be a relevant sentencing objective.
 2. The condition may have a bearing on the kind of sentence that is imposed and the conditions in which it should be served.
 3. Whether general deterrence should be moderated or eliminated as a sentencing consideration depends upon the nature and severity of the symptoms exhibited by the offender, and the effect of the condition on the mental capacity of the offender, whether at the time of the offending or at the date of sentence, or both.
 4. Whether specific deterrence should be moderated or eliminated as a sentencing consideration likewise depends upon the nature and severity of the symptoms of the condition as exhibited by the offender, and the effect of the condition on the mental capacity of the offender, whether at the time of the offending or at the date of the sentence, or both.
 5. The existence of the condition at the date of sentencing (or its foreseeable recurrence) may mean that a given sentence will weigh more heavily on the offender than it would on a person in normal health.
 6. Where there is a serious risk of imprisonment having a significant adverse effect on the offender’s mental health, this will be a factor tending to mitigate punishment.
- Any condition will only be considered mitigation under points 1, 3 and 4 if a causal link can be established between the condition and actual offending.
 - If no causal link is established, focus shifts to considerations 3, 5 and 6 **IF** the condition exists at the time of sentencing, or will exist while the offender is undergoing sentence.

Charles v The Queen [2011] VSCA 399 at [162]

¹ *R v Tsiaras* [1996] 1 VR 398.

[162]

1. The *Verdins*' principles are and should be regarded as exceptional.
2. Onus lies on the offender to establish the facts to enliven the *Verdins*' principles on the balance of probabilities as a mitigating factor.
3. Cogent evidence, normally in the form of an expert opinion, is ordinarily necessary if the principles in *Verdins* are to be enlivened.
4. It is always necessary to consider how the particular condition affected the mental functioning of the offender at the time of the offence and how it is likely to affect him or her in the future.
5. The offender must establish that their disability had the effect of impairing the offender's ability to either exercise appropriate judgment, impair their ability to make calm and rational choices, or to think clearly at the time of the offence.
6. *Verdins* has no application in respect of a mental condition postulated to have existed at the time of the offending unless the condition relied upon can be seen to have some "realistic connection" with the offending; or "caused or contributed" to the offending; or is "causally linked" to the offending.

D M v The Queen [2012] VSCA 227

[29] The fact that the appellant was feeling lonely and rejected, even when combined with depression, does not demonstrate that he did not understand the wrongfulness of his actions. There is no explanation in the report ... as to why or how these feelings of loneliness, depression and rejection played a role in the appellant's offending behaviour. There is no material put forward or relied upon other than comments that these factors 'most probably played a role in his offending behaviour' *D M v The Queen* [2012] VSCA 227, [29]

Sikaloski v The Queen [2012] VSCA 130

- Ongoing planning and management are relevant in determining the application of *Verdins*:

[28] First, such evidence can help to indicate the level of severity of an individual's mental condition and the extent to which it affects their capacity to function. Second, it can be relevant in assessing the existence or the strength of any causal link between the condition and the offending: *Sikaloski v The Queen* [2012] VSCA 130 at 28 per Cavanough AJA.